

Court No. - 46

Case :- WRIT - C No. - 19955 of 2020

Petitioner :- Srikant Mishra Alias Manoj

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Purushottam Dixit, Atul Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent-
Power Corporation prays for and is granted three days' time to
seek instructions.

Let the matter be listed in the additional cause list on
07.12.2020.

Order Date :- 2.12.2020

Lbm/-

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Counsel for Petitioner :- Purushottam Dixit, Atul Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad, Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

The case is adjourned on the request of learned counsel for the respondent-Power Corporation to enable him to seek instructions in the matter positively by the next date of listing.

Put up this case on 16.12.2020 in the additional cause list.

Order Date :- 7.12.2020

Ujjawal

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Purushottam Dixit, Atul Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad, Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondent No. 3 and learned Standing Counsel representing the State.

This writ petition has been filed seeking following relief:-

By means of this writ petition, the petitioner has prayed for quashing of the impugned recovery citation dated 17.2.2020 passed by the respondent No. 2 whereby petitioner was directed to deposit Rs. 2,51,343/- as electricity dues.

The submission of learned counsel for the petitioner is that the provisional assessment order was never served to the petitioner and without inviting the objection from the petitioner, the provisional assessment has been treated as final assessment and now the recovery citation dated 17.2.2020 has been issued directing the petitioner to pay the amount.

Learned counsel for the petitioner further submits that the petitioner has not been given any opportunity of hearing and as such, the recovery citation issued against him, is bad in the eyes of law. It is further contended that the respondents have not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003, Clause 6.8 as well as Clause 8.1 of the Electricity Supply Code, 2005 (in short 'Code, 2005') as no opportunity of hearing has been afforded to the petitioner.

Learned counsel appearing on behalf of Power Corporation submits that on the inspection of the

premises of the petitioner, the petitioner was found using electricity by illegal means. Hence, Provisional Assessment Notice was issued to the petitioner and as no objection was filed, the same was treated as final assessment.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another**, 2017 (3) AWC 3084, by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

"16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed."

In view of aforesaid, we are of the opinion that petitioner could not be compelled to deposit any amount on the basis of provisional assessment without affording any opportunity of hearing to him, while making any final assessment, that too without supplying the copy of the said order. The entire procedure adopted by respondent no.3 de hors the statutory provisions of Section 126 of the Act, 2003, Clause 6.8 and Clause 8.1 of the Code, 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by licensee for inspection, provisional assessment, hearing and final assessment in case of theft of electricity. Amount which is mentioned in the provisional assessment has been treated as final assessment without affording any opportunity of hearing, the same is in violation of principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is **disposed of** directing the petitioner to move a fresh representation before respondent no.3 within two weeks from today ventilating his grievances and in case, such representation is moved, the same shall be

considered and decided by respondent no. 3 who shall pass an appropriate, reasoned and speaking order regarding final assessment after giving due opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to recovery citation.

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 1.2.2021

Ishrat